

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CARLOS GUERRERO MERCEDES,

Plaintiff,

– against –

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT (NYPD),
NEW YORK CITY POLICE OFFICER ANDREW
LOGATTO (Shield No. 14334),
NEW YORK CITY POLICE OFFICER JOHN DOE 1,
NEW YORK CITY POLICE OFFICER JOHN DOE 2,
NEW YORK CITY POLICE OFFICER JOHN DOE 3,
NEW YORK CITY POLICE OFFICER JOHN DOE 4,
NEW YORK CITY POLICE OFFICER JOHN DOE 5,
NEW YORK CITY POLICE OFFICER JOHN DOE 6,
NEW YORK CITY POLICE OFFICER JOHN DOE 7,
NEW YORK CITY POLICE OFFICER JOHN DOE 8,
NEW YORK CITY POLICE OFFICER JOHN DOE 9,
NEW YORK CITY POLICE OFFICER JOHN DOE 10,

(John Doe's 1-10 are fictitious names of NYPD Officers utilized herein to put the municipal defendants City of New York and New York City Police Department on notice that in addition to the police officer named above, the claims contained herein will also be alleged against one or more other police officers who are employees of the City of New York, whose real names are presently unknown to the claimant.)

Defendants,

Index Number: _____

Date Purchased: January 15, 2020

SUMMONS

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service — or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York

— and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 15, 2020

/s/ F. William Salo

F. William Salo, Esq.
1295 Fifth Avenue, No. 29-C
New York, New York 10029
Tel: 212-517-3050
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Email: billsalo@salolaw.com

Defendants' Address for Service:

City of New York
New York City Police Department
Police Officer Andrew Logatto
Police Officers John Does 1 through 10
New York City Law Department
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New York, NY 10007
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VERIFIED COMPLAINT

Introduction

1. Plaintiff Carlos Guerrero Mercedes ("Mr. Guerrero") seeks to recover all allowable money damages, both compensatory and punitive, for personal injuries he suffered as a direct and proximate result of the tortious acts of Defendant City of New York ("the City"),

Defendant Police Officer Andrew Logatto (“PO Logatto”), and other police officers who are agents, servants, and employees of the City (hereinafter “the City’s agents”) named above as John Does I through 10.

2. As stated below in more detail, the defendants PO Logatto, City, and the City’s agents, committed acts of police misconduct by arresting, imprisoning, and prosecuting Mr. Guerrero without probable cause to believe he committed any crime, in violation of the common law and the Constitution of the state of New York, and in violation of federal law and the Constitution of the United States, including violation of Mr. Guerrero’s rights under the 4th and 14th Amendments to the Constitution of the United States, and under 42 USC § 1983.

3. Furthermore PO Logatto and the City’s agents acted in concert and in furtherance of the long-standing and well-known custom and policy of the New York City Police Department of deliberate discrimination against black and Hispanic men like Mr. Guerrero on the basis of race, ethnicity, and/or national origin, and thereby committed tortious acts that violated the common law of the state of New York, the Constitution of the State of New York, and which deprived Mr. Guerrero of his constitutional rights under the 4th and 14th Amendments to the Constitution of the United States, and which in turn violated 42 U.S.C. §1983, as set forth in *Monell v. Dept. of Soc. Serv.s*, 436 US 658 (1978), and its progeny.

4. As a direct and proximate result of the tortious acts committed by the defendants, Mr. Guerrero suffered personal injuries, including but not limited to physical pain, suffering, and injuries, but also shock, shame, humiliation, emotional distress, mental anguish, and other injuries to his mental and physical well-being.

Venue

5. Venue is proper in the Supreme Court for the County of Kings pursuant to CPLR 504(3), because the events or omissions giving rise to plaintiff's claims arose within the territorial boundaries of the County of Kings.

The Parties

6. Mr. Guerrero is a private citizen, and is a resident of the city and state of New York, and the county of Kings.

7. The City was and still is a municipal corporation duly authorized and existing under the laws of the state of New York.

8. The New York City Police Department ("NYPD") is a subsidiary subdivision of the City.

9. Defendant Andrew Logatto, (hereinafter "PO Logatto") was and is a male police officer employed by the City, with Shield No. 14334.

10. PO Logatto is employed by the City as member of the NYPD.

11. PO Logatto is or was assigned to the 83rd Precinct house of the NYPD.

12. Police Officers John Does 1 through 10 ("John Does 1-10" or "the City's agents") are employed by the City as members of the NYPD. The names and shield numbers of John Does 1-10 are unknown to Mr. Guerrero at this time, but are known to the City.

13. Upon information and belief, John Does 1-10 are also assigned to work at the 83rd Precinct house of the NYPD.

Mr. Guerrero Timely Filed a Notice of Claim

14. Pursuant to General Municipal Law §50-e, on January 14, 2019, and within ninety (90) days of the accrual of the causes of action at issue herein, Mr. Guerrero timely filed a notice of claim with the New York City Office of the Comptroller, stating the requisite particulars of his claim.

15. Thereafter, for more than thirty (30) days, and up to the date of the commencement of this action, the City refused or neglected to make any settlement or payment thereof.

16. On March 6, 2019, the City conducted a statutory hearing pursuant to General Municipal Law §50-h of Mr. Guerrero.

17. Mr. Guerrero satisfied all conditions precedent under the laws of the state of New York prior to the filing of this lawsuit.

18. On June 5, 2018, plaintiff commenced this action within one year and ninety (90) days after accrual of these causes of action, which is within the time limitation required by General Municipal Law §50-i(1)(c).

Factual Allegations Common to All Causes of Action

19. The police misconduct at issue herein, began with a false arrest on February 23, 2018, and continued thereafter, due to the ongoing deception, cover-up, and sworn false statements of PO Logatto and the other John Does 1-10, up until and including October 17, 2018, when all charges against Mr. Guerrero were finally dismissed with prejudice by a Justice of the Supreme Court for Kings County, Criminal Division.

20. On February 23, 2018, at approximately 6:00 PM, Mr. Guerrero entered a clothing store named “Brooklyn Moda” at 338 Knickerbocker Avenue, in the borough of Brooklyn, county of Kings, city and state of New York (hereinafter “the clothing store”).

21. Mr. Guerrero was a lawful business invitee inside the clothing store.

22. The clothing store was open to the public at that time.

23. Mr. Guerrero was not employed by the clothing store in any capacity, and has never been employed by the clothing store in any capacity whatsoever.

24. Mr. Guerrero has never been the manager of the clothing store.

25. Mr. Guerrero did not possess any counterfeit merchandise at any time.

26. Immediately after entering the store, Mr. Guerrero was met by a group of approximately ten (10) police officers employed by the City, who claimed to be conducting a “raid” to recover allegedly “counterfeit merchandise”.

27. The group was led by PO Logatto.

28. PO Logatto identified himself as a police officer to Mr. Guerrero.

29. PO Logatto was on duty during incident, and was acting in the scope of his employment, and was acting in furtherance of the NYPD’s business.

30. PO Logatto falsely accused Mr. Guerrero of being the manager of the Brooklyn Moda store, and falsely accused Mr. Guerrero of possessing and selling counterfeit merchandise in the store.

31. Mr. Guerrero explained to PO Logatto that Mr. Guerrero was simply a bystander in the store, and that he was not employed by the store in any capacity, and that he was not the

manager of the clothing store, and that he was not possessing, selling, or buying any counterfeit merchandise.

32. PO Logatto ignored Mr. Guerrero, and arrested Mr. Guerrero inside the store.

33. PO Logatto arrested Mr. Guerrero, knowing that Mr. Guerrero had committed no crime.

34. PO Logatto lacked probable cause to arrest Mr. Guerrero, as he did not observe Mr. Guerrero commit any crime, nor did he rely on the statements of any informant, or witness, or victim, nor did he have a warrant to arrest Mr. Guerrero.

35. An arrest without probable cause is an unreasonable seizure which violates the 4th Amendment, and a prosecution without probable cause also violates the 4th Amendment. *See Manuel v. City of Joliet, Ill.*, 137 S. Ct. 911, 580 US __ (2017).

36. Mr. Guerrero was handcuffed, and placed under arrest while he was inside the clothing store.

37. Defendants knew, or should have known, that Mr. Guerrero did not work in the clothing store, and further knew, or should have known, that Mr. Guerrero did not possess any counterfeit merchandise at any time.

38. Defendants intended to confine Mr. Guerrero in a jail cell, and they did so confine him for approximately twenty-four hours from the afternoon of February 23, 2018 until the afternoon of February 24, 2018.

39. Mr. Guerrero was conscious of his confinement, and was aware that he was being deprived of his freedom during the time of his arrest and confinement in jail.

40. Mr. Guerrero did not consent to the arrest and confinement.

41. The arrest and confinement were not otherwise privileged, meaning there was no probable cause to arrest Mr. Guerrero, and Mr. Guerrero was not arrested pursuant to a warrant.

42. The arresting police officer, PO Logatto knew, or should have known, that Mr. Guerrero was innocent of any crime.

43. The arrest and confinement were not reasonable under the circumstances.

44. Mr. Guerrero was transported by the NYPD to the 83rd Precinct house where he was questioned by NYPD detectives without being given his Constitutionally mandated *Miranda* warnings.

45. Mr. Guerrero was subjected to a physical search of his person, and was fingerprinted and photographed at the 83rd Precinct house by members of the New York City Police Department.

46. Mr. Guerrero was treated as a criminal suspect, even though the arresting police officers knew him to be innocent.

47. Mr. Guerrero was given no food or water at the 83rd Precinct house.

48. Mr. Guerrero remained at the 83rd Precinct house until approximately 12:00 midnight, when he was transferred to the holding cells of the Supreme Court for Kings County, Criminal Division.

49. Mr. Guerrero was forced to endure shock, shame, and humiliation, and was made to feel as if he had no rights under the law.

50. The NYPD officers made Mr. Guerrero feel degraded and denigrated on the basis of his race, ethnicity and national origin. He was made to feel as if he was less than human.

51. Mr. Guerrero is a green card holder and a lawful permanent resident of the United States, and is now fearful that he will be denied citizenship based upon this arrest.

52. The next day, on February 24, 2018, Mr. Guerrero was taken to the Supreme Court for Kings County, Criminal Division, located on Schermerhorn Street, in Brooklyn, and was arraigned.

53. At the arraignment, PO Logatto gave a false written statement under oath to the Supreme Court stating, *inter alia*, that Mr. Guerrero was the “manager” of the Brooklyn Moda store, and that PO Logatto caught Mr. Guerrero red-handed, and that PO Logatto had observed Mr. Guerrero “in possession of thirty-five sweatshirts, one fragrance, thirty-nine belts, four hats, three scarves and twenty-six boxes which bore [counterfeit] trademarks of Louis Vuitton, Gucci, Burberry, and Salvatore Ferragamo”.

54. However, Mr. Guerrero had no such merchandise in his possession at any time.

55. PO Logatto’s allegations against Mr. Guerrero to the Court were completely false, and PO Logatto knew them to be false when he made them under oath.

56. PO Logatto’s deliberate misrepresentation of the facts caused the criminal charge of possession of counterfeit merchandise to be filed against Mr. Guerrero.

57. Defendants City, NYPD, PO Logatto, and the other ten (10) John Doe police officers (hereinafter collectively “Defendants”), then deliberately prosecuted Mr. Guerrero with malice (*i.e.*, with knowledge that the charges were false), alleging that Mr. Guerrero had violated Penal Law §165.71, which is “Trademark Counterfeit in the Third Degree”, when in fact the Defendants knew, or should have known, that Mr. Guerrero was innocent of any criminal charges.

58. Thereafter, Mr. Guerrero was prosecuted in Kings County Criminal Court, under criminal docket number 2018-KN-010117.

59. Mr. Guerrero was arrested on February 23, 2018, and was arraigned on February 24, 2018. He was released later in the afternoon of February 24, 2018 without bail, but he was required to return to Court two months later.

60. Mr. Guerrero's case was never presented to a grand jury.

61. Defendants prosecuted Mr. Guerrero, despite knowing that Mr. Guerrero was innocent.

62. Mr. Guerrero was forced to come back to Court another eight (8) times with his privately retained attorney, on the following dates: April 17, 2018, May 15, 2018, June 12, 2018, June 22, 2018, June 29, 2018, August 2, 2018, and September 21, 2018.

63. Each time Mr. Guerrero came back to Court he was prepared to go to trial, and was overcome each time with the mental anguish and emotional distress that arose from knowing he was an innocent man forced to go to trial to defend himself against a baseless criminal charge, and that he was taking a risk that he could lose the trial and be convicted of a crime he did not commit.

64. However, each time Mr. Guerrero appeared in Court ready for trial, the Defendants refused to present any case against him, and instead requested an adjournment each time.

65. After eight such adjournments, the criminal charges were dismissed by a Justice of the Supreme Court for Kings County, Criminal Division, on October 17, 2018.

66. Based upon the foregoing, the Defendants maliciously prosecuted Mr. Guerrero.

67. The Defendants commenced a false criminal proceeding against Mr. Guerrero knowing that Mr. Guerrero was innocent.

68. The prosecution was terminated in favor of Mr. Guerrero.

69. The Defendants lacked probable cause to arrest or charge Mr. Guerrero since he did not work for the clothing store, and since he was not possessing or selling any counterfeit goods allegedly found therein.

70. The Defendants prosecuted Mr. Guerrero without probable cause, and without regard to his civil rights under state and federal law.

71. The Defendants violated Mr. Guerrero's 4th Amendment right by maliciously prosecuting him without probable cause to believe he had committed any crime.

72. Defendants' lack of probable cause to prosecute in this case constitutes actual malice, and warrants punitive damages, in addition to compensatory damages.

73. Defendants violated Mr. Guerrero's civil rights under state and federal law, including 42 USC §1983, and the 4th Amendment to the United States Constitution.

**The NYPD Has a Longstanding Policy of Violating the
Constitutional Rights of Black and Hispanic Men**

74. The City knows and tacitly approves of the NYPD's policy either written or unwritten of harassing, intimidating, stopping without articulable suspicion, mistreating with excessive force, beating, and torturing, and then arresting without probable cause, and thereafter prosecuting with actual malice, Black and Hispanic men in our community.

75. The Defendants in this case targeted Mr. Guerrero for false arrest, false imprisonment, and malicious prosecution, and other violations of his civil rights, based solely upon his race, ethnicity, and his place of national origin.

76. Mr. Guerrero is an Afro-Caribbean man of Hispanic origin, who was born in the Dominican Republic.

77. The City and the NYPD have a long-standing policy, custom, and practice of depriving Black and Hispanic men of their constitutional rights under the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments of the Constitution, and in violation of 42 USC §1983.

78. In 2013, in the case of *Floyd v. City of New York*, Federal Judge Shira Scheindlin of the United States District Court for the Eastern District of New York found that the NYPD instructs its police officers to harass, detain, stop, frisk, arrest, and prosecute Black and Hispanic men without probable cause. After a bench trial, Judge Scheindlin found that the NYPD instructed its police officers to carry out this policy of racial discrimination in order to “strike fear into the hearts of Black and Hispanic men”. See *Floyd v. City of New York*, 959 F. Supp. 2d 540 (SDNY 2013).

79. The individual police officers involved in this lawsuit acted in furtherance of the NYPD’s established policy, custom, and practice of discrimination against Black and Hispanic men, and thereby deprived Mr. Guerrero of his civil rights under state and federal law, and under the Constitutions of the state of New York, and of the United States.

80. In furtherance of its custom and policy of discrimination, the NYPD encourages its police officers to make false arrests of Black and Hispanic men without probable cause, and then to prosecute without probable cause, in violation of the 4th Amendment of the U.S. Constitution.

81. The City has *respondeat superior* liability for the intentional torts of its police officers in this case, because they acted in furtherance of the business of the NYPD, and thus acted within the scope of their employment, and acted under the color of state law.

Proximate Causation

82. PO Logatto and the City's agents deprived Mr. Guerrero of his constitutional rights in violation of 42 USC §1983, and those constitutional deprivations proximately caused a compensable loss for physical injuries, pain and suffering, emotional distress, mental anguish, shame, humiliation, shock, and terror.

83. PO Logatto's shockingly outrageous and tortious conduct was done intentionally or with reckless, callous, and wanton disregard of the constitutional rights of Mr. Guerrero.

84. The tortious conduct of PO Logatto, and the City's agents proximately caused Mr. Guerrero to suffer damages, including but not limited to damages for physical injuries, pain and suffering, mental anguish, emotional distress, shame, humiliation, and terror, all of which could have been avoided by the exercise of reasonable and prudent care on the part of PO Logatto, the City, and the City's agents.

85. No act, or failure to act, on the part of Mr. Guerrero contributed to the happening of the incident, nor contributed to any injuries suffered by Mr. Guerrero.

Damages

86. By reason of the allegations contained above and below this paragraph, Mr. Guerrero will seek to recover compensatory damages for past and future pain and suffering, mental anguish, emotional distress, shame, humiliation, and terror, as well as compensatory damages for past and future medical care and treatment, and will seek recovery of his out-of-

pocket expenses related to this matter, in an amount that exceeds the jurisdictional threshold of this court, and which accords with the proof adduced at the trial of this matter.

87. In addition to the foregoing, Mr. Guerrero suffered humiliation and damage to his reputation in the community, which had a negative impact on his business and personal relationships.

CAUSES OF ACTION

Count One:

False Arrest and False Imprisonment under State Law

88. Mr. Guerrero repeats and realleges all preceding paragraphs as if fully set forth herein.

89. Defendants falsely arrested and imprisoned Mr. Guerrero in violation of New York state law. The elements of false arrest and false imprisonment are set forth above.

90. The City is liable under the doctrine of *respondeat superior* for the tortious conduct of PO Logatto, and the other police officers, since they were acting in the scope of their employment.

91. Mr. Guerrero will seek any and all compensatory damages allowed by state law under this cause of action, subject to proof at trial.

92. Mr. Guerrero will seek punitive damages under state law for the willful, reckless, wanton, or malicious actions of PO Logatto and the other police officers, who arrested Mr. Guerrero without probable cause, and while knowing Mr. Guerrero was innocent of any crime.

**Count Two:
False Arrest and False Imprisonment under 42 USC §1983**

93. Mr. Guerrero repeats and realleges all preceding paragraphs as if fully set forth herein.

94. PO Logatto's false arrest of Mr. Guererro was done without probable cause and was therefore in violation of the 4th Amendment.

95. PO Logatto, and the City's agents acted within the scope of their employment.

96. PO Logatto, and the City's agents acted under color of state law, and were on duty and were dressed in NYPD police uniforms at the all times complained of herein.

97. The tortious actions of the PO Logatto, and the City's agents caused the injuries and damages claimed by Mr. Guerrero, as stated above.

98. The City has *respondeat superior* liability for the intentional torts of PO Logatto, and the City's agents.

99. Mr. Guerrero will seek compensatory damages under this cause of action.

100. Pursuant to 42 USC §1983, Mr. Guerrero will seek punitive damages without limitation against PO Logatto, and the City's agents, because their actions were based on evil motive, or were done with the reckless and callous disregard of Mr. Guerrero's federal rights.

101. Pursuant to 42 USC §1988(b), Mr. Guerrero will seek to recover reasonable attorney's fees under this cause of action.

**Count Three:
Malicious Prosecution under State Law**

102. Mr. Guerrero repeats and realleges all preceding paragraphs as if fully set forth herein.

103. PO Logatto and the other police officers did not have probable cause to believe that Mr. Guerrero was guilty of any crime.

104. The Defendants acted maliciously when they initiated the prosecution of Mr. Guerrero, because they knew, or should have known, that he was innocent of any crime.

105. No reasonably prudent person would have believed that Mr. Guerrero was guilty of the crime of possessing counterfeit merchandise.

106. The Defendants initiated the criminal proceeding without probable cause, in bad faith, and with actual malice.

107. Furthermore, the Defendants continued their malicious prosecution over a period of eight (8) months and ten (10) court appearances, wherein the Defendants had sufficient time to learn that their criminal case against Mr. Guerrero lack any merit whatsoever, but failed to so learn, or to correct their mistake.

108. The criminal proceeding was finally terminated in favor of Mr. Guerrero by a Justice of the Supreme Court for Kings County.

109. The City is liable under the doctrine of *respondeat superior* for the tortious conduct of PO Logatto, and the other police officers, since they were acting in the scope of their employment.

110. Mr. Guerrero will seek any and all compensatory damages allowed by state law under this cause of action, subject to proof at trial.

111. Mr. Guerrero will seek punitive damages under state law for the willful, reckless, wanton, or malicious actions of PO Logatto and the other police officers, who prosecuted Mr.

Guerrero without probable cause, and while knowing Mr. Guerrero was actually innocent of any crime.

Count Four:
Malicious Prosecution under 42 USC §1983

112. Mr. Guerrero repeats and realleges all preceding paragraphs as if fully set forth herein.

113. PO Logatto and the City's agents acted in the scope of their employment as police officers when they instituted the criminal charge against Mr. Guerrero, and thus acted under the color of state law.

114. As stated above, PO Logatto and the City's agents acted with malice, bad faith, and without probable cause to initiate the criminal prosecution of Mr. Guerrero, which violated the 4th Amendment.

115. The tortious actions of the PO Logatto, and the City's agents caused the injuries and damages claimed by Mr. Guerrero, as stated above.

116. The City has respondeat *superior liability* for the intentional torts of PO Logatto, and the City's agents.

117. Mr. Guerrero will seek compensatory damages under this cause of action.

118. Pursuant to 42 USC §1983, Mr. Guerrero will seek punitive damages without limitation against PO Logatto, and the City's agents, because their actions were based on evil motive, or were done with the reckless and callous disregard of Mr. Guerrero's federal rights.

119. Pursuant to 42 USC §1988(b), Mr. Guerrero will seek to recover reasonable attorney's fees under this cause of action.

Count Five:
A Monell Claim under 42 USC §1983

120. Mr. Guerrero repeats and realleges all preceding paragraphs as if fully set forth herein.

121. As more fully stated above, the NYPD has a policy of discrimination against Black and Hispanic men which caused injury to Mr. Guerrero.

122. In furtherance of that policy of discrimination, the Defendants initiated a prosecution lacking probable cause against Mr. Guerrero, thus depriving Mr. Guerrero the protections guaranteed by the 4th Amendment. *See Monell v. Dept. of Soc. Servs.*, 436 US 658 (1978); *see also Manuel v. City of Joliet, Ill.*, 137 S. Ct. 911, 580 US ___ (2017).

123. This cause of action is interposed directly against the City.

124. This cause of action is not based upon *respondeat superior* liability.

125. The City's unconstitutional policy of discrimination against Black and Hispanic men in our community proximately caused Mr. Guerrero to suffer damages, including physical injuries, pain and suffering, mental anguish, shame, humiliation, and other damages, as described above.

126. Mr. Guerrero will seek compensatory damages as stated above.

127. Pursuant to 42 USC §1988(b), Mr. Guerrero will seek to recover reasonable attorney's fees.

Count Six:
Failure to Adequately Train or
Supervise under 42 USC §1983

128. Mr. Guerrero repeats and realleges all preceding paragraphs as if fully set forth herein.

129. The City violated 42 USC §1983 by failing to adequately train or supervise its police officers.

130. The City is liable under 42 USC §1983 for constitutional violations resulting from its failure to train its police officers to avoid discrimination on the basis of race, ethnicity, and/or national origin. *See Canton v. Harris*, 489 U.S. 378 (1989).

131. The City is also liable under 42 USC §1983 for constitutional violations resulting from its failure to supervise its police officers, to ensure compliance with the U.S. Constitution, and to safeguard the civil rights of all of its citizens equally and fairly.

132. Mr. Guerrero was denied his constitutional rights under the 4th and 14th Amendments by the City's failure to train and supervise its police officers so as to prevent the NYPD's pattern of harassment against Black and Hispanic men in our community in general, and the constitutional violations suffered by Mr. Guerrero in particular, to wit his malicious prosecution.

133. The City's failure to train and supervise the police officers involved in this case resulted in deliberate indifference to the constitutional rights of Mr. Guerrero.

134. Here the City's failure to train and supervise its police officers reflects a deliberate or conscious choice by the City to discriminate on the basis of race, ethnicity, and/or national origin, making the City's failure to train and supervise an actionable City policy under 42 USC §1983.

135. The police officers involved in this case received no training with regard to the equal treatment of Black and Hispanic residents of the City under the law, as required by the Constitution.

136. This cause of action is interposed directly against the City.

137. This cause of action is not based upon *respondeat superior* liability.

138. The City's unconstitutional failure to train and supervise its police officers to avoid discrimination proximately caused Mr. Guerrero to suffer damages, including physical injuries, pain and suffering, emotional distress, mental anguish, shame, humiliation, and other damages, as stated above.

139. Mr. Guerrero will seek compensatory damages as stated above.

140. Pursuant to 42 USC §1988(b), Mr. Guerrero will seek to recover reasonable attorney's fees under this cause of action.

**Count Seven:
Negligent Infliction of Emotional
Distress under State Law**

141. Mr. Guerrero repeats and realleges all preceding paragraphs as if fully set forth herein.

142. PO Logatto owed a duty of care to Mr. Guerrero to avoid causing him emotional distress.

143. PO Logatto breached that duty of care by maliciously prosecuting Mr. Guerrero.

144. PO Logatto's malicious prosecution caused Mr. Guerrero to suffer mental anguish and emotional distress, including but not limited to humiliation, trepidation, embarrassment, fear, panic, and terror.

145. Mr. Guerrero's mental and emotional injuries were a direct and proximate result of PO Logatto's breach of his duty of care to Mr. Guerrero to obey the common law of the state of New York, and the 4th Amendment.

146. Mr. Guerrero's claim of emotional distress possesses the guarantee of genuineness that any person would experience fear and panic going to court ten (10) times over eight (8) months, and being prepared each time to defend oneself against a false criminal charge at a trial, which could result in a criminal conviction, if one is not believed.

147. PO Logatto was acting within the scope of his employment with the NYPD when he initiated the malicious prosecution of Mr. Guerrero.

148. The City is vicariously liable for the negligent tort of PO Logatto under *respondeat superior*.

149. The aforesaid tortious act of negligent infliction of emotional distress perpetrated by PO Logatto caused Mr. Guerrero to suffer pain and suffering, emotional distress, mental anguish, shame, humiliation, and other damages, all of which could have been avoided by the exercise of due and reasonable care on the part of PO Logatto.

150. Mr. Guerrero will seek compensatory damages as stated above.

151. Mr. Guerrero will seek to recover punitive damages without limitation against PO Logatto because his actions amounted to willful or wanton negligence, and/ or recklessness, and/ or involve a conscious disregard of the rights of Mr. Guerrero, and/ or conduct so reckless as to amount to such disregard.

Prayer for Relief

Wherefore, based upon the foregoing, Mr. Guerrero demands judgment against all of the defendants as more fully set forth above, in such an amount of compensatory and punitive damages as a jury may award, and for the costs of this action, including attorney's fees under 42 USC §1988, and where allowable under state law.

Mr. Guerrero seeks to recover compensatory damages for personal injuries, pain and suffering, mental anguish, emotional distress, shame, embarrassment, humiliation, shock, terror, panic, and fear that he suffered as a result of the intentional, deliberate, willful, malicious, wanton, reckless, careless, and/ or negligent conduct of the defendants, which violated Mr. Guerrero's constitutional rights under the 4th, 5th, 6th, 8th, and 14th Amendments, and which violated 42 U.S.C. §1983, §1985 and §1986.

Mr. Guerrero also seeks punitive damages for the outrageous, willful, wanton, and reckless conduct of the defendants which was based on malicious intent and evil motive, and/ or involved a reckless and callous indifference to Mr. Guerrero's federal and constitutional rights.

Mr. Guerrero seeks such other relief as this Court finds appropriate under the law, and under the circumstances, and in the interests of justice, fairness, and equity.

.Dated: New York, New York
May 3, 2019

/s/ F. William Salo

F. William Salo, Esq.
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Attorneys for Defendant City of New York
100 Church Street
New York, NY 10007

ATTORNEY VERIFICATION

F. William Salo, an attorney admitted to practice in the State of New York affirms under penalty of perjury:

That affirmant is the attorney for the plaintiff in the action within; that affirmant has read the foregoing Verified Complaint and knows the contents thereof; that the same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true; that the reason that this verification is not made by plaintiff and is made by affirmant is that plaintiff is not presently in the county wherein the attorney for the plaintiff maintains his office.

Affirmant further says that the source of affirmant's information, and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge, is from investigations made on behalf of said plaintiff.

Dated: New York, New York
January 15, 2020

/s/ F. William Salo

F. William Salo